

CHAPTER 23.

An Act to amend the law in relation to the issue of motor driving licences. [14th July 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Exemption
of steersmen
from certain
provisions
as to issue of
licences.

20 & 21
Geo. 5. c. 43.

1.—(1) Notwithstanding the provisions of subsection (1) of section four of the Road Traffic Act, 1930, a person who is not the holder of a licence to drive a motor vehicle issued under Part I of that Act may act as steersman of a motor vehicle (being a vehicle on which a speed limit of five miles per hour or less is imposed by or under section ten of that Act) under the orders of another person engaged in the driving of the vehicle who is licensed in that behalf in accordance with the requirements of the Road Traffic Acts, 1930 to 1934, and a person may employ a person who is not the holder of such a licence so to act.

24 & 25
Geo. 5. c. 50.

(2) Notwithstanding the provisions of subsection (1) of section thirty-one of the Road Traffic Act, 1934, a person who is not licensed as mentioned in that subsection may act as aforesaid in relation to such a vehicle as aforesaid being a heavy goods vehicle, and a person may employ a person who is not licensed as mentioned in that subsection so to act.

Issue of
provisional
licences
with a view
to testing of
heavy
vehicle
drivers.

2.—(1) Notwithstanding the provisions of subsection (7) of section thirty-one of the Road Traffic Act, 1934, whereby it is enacted that a licence to drive a heavy goods vehicle granted under that section shall, unless previously revoked, continue in force for three years, the licensing authority may, for the purpose of enabling an applicant to learn to drive such a vehicle with a view to passing a test under subsection (5) of that section, issue such a licence so as to continue in force, unless previously revoked, for three months from the date on which it is expressed to take effect.

(2) A licence issued as aforesaid shall be issued as a provisional licence subject to the prescribed conditions,

and if any person to whom a licence is issued as aforesaid fails to comply with any of the conditions subject to which it is issued, he shall be guilty of an offence.

(3) A person to whom a licence is issued as aforesaid shall not be deemed by virtue of his being the holder of that licence to be the holder of a licence within the meaning of subsection (9) of the said section thirty-one (which relates to appeals by holders of licences).

3.—(1) Where, under section six of the Road Traffic Act, 1934, any person is required to pass the prescribed test of competence to drive, and the test passed by him is a test prescribed under subsection (5) of that section with respect only to the driving of any specified class or description of vehicles, the licence granted to him under Part I of the Road Traffic Act, 1930, shall specify that class or description of vehicles, and he shall be deemed not to be the holder of a licence granted under that Part of that Act to drive motor vehicles of any other class or description.

Issue of
licences
appropriate
to test.

(2) For the purpose of enabling the licensing authority where an applicant for a licence under section thirty-one of the Road Traffic Act, 1934, is subjected to a test to limit the licence to a class or classes of vehicles to which that test is appropriate, the Minister may make regulations prescribing the class or classes of vehicles to which such licences may be limited under subsection (4) of that section.

4.—(1) This Act may be cited as the Road Traffic (Driving Licences) Act, 1936, and this Act and the Road Traffic Acts, 1930 to 1934, may be cited together as the Road Traffic Acts, 1930 to 1936.

Short title,
citation,
construction
and extent.

(2) Subsection (1) of section one and subsection (1) of section three of this Act shall be construed as one with Part I of the Road Traffic Act, 1930, and subsection (2) of section one, section two, and subsection (2) of section three of this Act shall be construed as one with Part IV of that Act.

(3) This Act shall not extend to Northern Ireland.

